

HOUSE BILL 2356

By Howell

AN ACT to amend Tennessee Code Annotated, Section
55-8-151, relative to evidence.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-8-151(c)(2), is amended by deleting the subdivision and substituting instead the following:

(A) An LEA that installs cameras on the exterior of school buses in accordance with subdivision (c)(1) shall enter into a memorandum of understanding with local law enforcement that includes, but is not limited to, the review of evidence from a camera and overall enforcement. Unless otherwise authorized by law, only POST-certified or state-commissioned law enforcement officers, including school resource officers, as defined in § 49-6-4202, are authorized to review evidence from a camera to determine whether a violation of subdivision (a)(1) has occurred.

(B) In addition to, and not in limitation of, the memorandum of understanding required in subdivision (c)(2)(A), an LEA may authorize school security personnel to review evidence from a camera to determine whether a violation of subdivision (a)(1) has occurred. The use of school safety personnel under this subdivision (c)(2)(B) does not prohibit or restrict an LEA from entering into or maintaining a memorandum of understanding with a law enforcement agency under subdivision (c)(2)(A), and both review processes may be used concurrently. For purposes of this subdivision (c)(2)(B), "school safety personnel" means a school safety officer, school resource officer, or other individual employed or contracted by an LEA whose duties include student safety or campus security.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.